

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

11. ISREAL MENDOZ V. ENEIDA MENDOZA

PFL20210121

Respondent filed a Request for Order (RFO) on March 13, 2026, seeking modification of the current child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 10, 2026, and a review hearing on June 4, 2026. Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Nevertheless, both parties appeared for the CCRC appointment and were able to reach many agreements. A report with the parties' agreements and additional recommendations was filed with the court on May 6, 2026. Copies were mailed to the parties on May 7, 2026.

Petitioner filed a Responsive Declaration on May 15, 2026. It was served on May 21, 2026. Petitioner does not raise the issue of the defect in service; therefore, the court deems it to have been waived. Petitioner requests the parties have joint legal custody while he has sole physical custody.

Petitioner filed a Reply to the CCRC report on May 22, 2026. It was mail served the same day. Petitioner disputes the CCRC counselor's characterization of his actions.

The court has read and considered the filings as outlined above. The court finds the parties' agreements and the recommendations as set forth in the May 6th CCRC report to be in the best interest of the minor. The court adopts the agreements and recommendations as set forth.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT FINDS THE PARTIES' AGREEMENTS AND THE RECOMMENDATIONS AS SET FORTH IN THE MAY 6TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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12. RUDY PAIVA V. CARLA PEREZ

24FL0031

Petitioner filed a Request for Order on March 17, 2026, seeking “finalization of divorce”. There is no Proof of Service showing Respondent was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #12: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

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